

24STCV31896 24STCV31896

County: los-angeles

Division: Civil Law and Motion

Department: 733

Hearing date: 2026-09-02

Motion: PLAINTIFF'S MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION, SET ONE

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Case Number: 24STCV31896 Hearing Date: September 2, 2026 Dept: 733

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES

VICTORIA

JESUSITA OJEDA, an individual,

Plaintiff,

vs.

HYUNDAI MOTOR AMERICA; and DOES 1

through 10, inclusive,

Defendants.

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CASE NO.: 24STCV31896

[TENTATIVE] ORDER RE: PLAINTIFF'S MOTION
TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION, SET ONE

Dept. 733

8:30 a.m.

September 2, 2026

I.

INTRODUCTION

This
is a Song-Beverly action.

On December 4,
2024, Plaintiff Victoria Jesusita Ojeda ("Plaintiff") filed a complaint against
Defendant Hyundai Motor America ("Defendant"), alleging causes of action for
(1) Violation of Subdivision (d) of Civil Code section 1793.2, (2) Violation of Subdivision (b) of Civil Code
section 1793.2, (3) Violation of Subdivision (a)(3) of Civil Code section
1793.2, (4) Breach of Express Warranty and (5) Breach of the Implied Warranty
of Merchantability.

On July 24, 2026, Plaintiff filed the instant motion to
compel further responses to Requests for Production, set one ("RFPDs").

No opposition was filed.

On August 28, 2026, the parties filed a joint status report regarding the RFPDs.

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II.

LEGAL STANDARD

Code of Civil Procedure section 2031.220 states: "A statement that the party to whom a demand for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production."

Code of Civil Procedure section 2031.320(a) states: "If a party filing a response to a demand for inspection, copying, testing, or sampling under Sections 2031.210, 2031.220, 2031.230, 2031.240, and 2031.280 thereafter fails to permit the inspection, copying, testing, or sampling in accordance with that party's statement of compliance, the demanding party may move for an order compelling compliance."

The demanding party may move for an order compelling further responses to the demand if the demanding party deems that (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (Code Civ. Proc., § 2031.310(a).)

Motions to compel further responses to Requests for Production must set forth specific facts showing good cause justifying the discovery sought by the request. (Code Civ. Proc., § 2031.310(b).) To establish good cause, a discovery proponent must

identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact. (Digital Music News LLC v. Superior Court (2014) 226 Cal.App.4th 216, 224, disapproved on other grounds by Williams v. Superior Court (2017) 3 Cal.5th 531; see also Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98 [characterizing good cause as “a fact-specific showing of relevance”]; Tbg Ins. Servs. Corp. v. Superior Court (2002) 96 Cal.App.4th 443, 448 [the burden to show good cause for production “is met simply by a factspecific showing of relevance.”].) If good cause is shown by the moving party, the burden shifts to the responding party to justify any objections made to disclosure of the documents. (Kirkland, supra, 95 Cal.App.4th at 98.)

Code

Complaint Response

A code-compliant response to a request for production consists of any of the following: (1) a statement that the party will comply, (2) a representation that the party lacks the ability to comply, or (3) an objection. (Code Civ. Proc., § 2031.210.) A statement that the party will comply must state that the requests for production “will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.” (Id. § 2031.220.) “If only part of an item or category of item in a demand for inspection, copying, testing, or sampling is objectionable, the response shall contain a statement of compliance, or a representation of inability to comply with respect to the remainder of that item or category.” (Id. § 2031.240(a).) If an objection is made, the responding party must “[i]dentify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the demand to which an objection is being made.” (Id. § 2031.240(b)(1).)

Separate

Statement

According to California Rules of Court, rule 3.1350(c)(2), a motion to compel further responses must always be

accompanied by a separate statement containing the requests and the responses, verbatim, as well as reasons why a further response is warranted. (Cal. Rules of Court, rule 3.1345(a).) The separate statement must also be complete in itself; no extrinsic materials may be incorporated by reference. (Id. at Rule 3.1345(c).)

Here,
on July 24, 2024, Plaintiff filed a Separate Statement to the instant motion adhering to the requirements of California Rules of Court, Rule 3.1345(a).

Thus,
this requirement has been met.

Timeliness

A
motion to compel a further response to a request for production must be noticed within 45 days of the service of the verified response, or any verified supplemental response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. Otherwise, the propounding party waives any right to compel further response to the demand. (See Code Civ. Proc., § 2031.310(c); see also *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.)

“[T]he
time within which to make a motion to compel production of documents is mandatory and jurisdictional just as it is for motions to compel further answers to interrogatories.” (*Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.) The 45-day deadline “is ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (Ibid.)

Here, on January 14, 2025, Plaintiff
served the RFPDs upon Defendant. (Enav Decl., ¶ 12, Ex. 3.) On March 11, 2025, Defendant served its responses. (Id. ¶ 13, Ex. 4.)

The
instant motion was filed on July 24, 2026, which is over a year later after Defendant served its responses to the RFPDs. But “the language is clear that the clock on a motion to compel

begins to run once 'verified response[s]' or 'supplemental verified response[s]' are served[.]" (Golf & Tennis Pro Shop, Inc. v. Superior Ct. (2022) 84 Cal.App.5th 127, 135.) Thus, the clock never began to run.

III.

DISCUSSION

Pursuant to the parties' joint status report, all RFPDs are still at issue to the

extent Plaintiff is requesting documents and information that are not relevant to the Subject Vehicle and the warranty entered into between Plaintiff and Defendant.

As an initial matter, the Court finds Defendant's objections to not be specific and thus, are overruled. Under California law, objections must be specific, "boilerplate" objections and "nuisance objections" are inappropriate and even sanctionable. (Korea Data Systems Co., Ltd. v. Superior Court, (1997) 51 Cal.App.4th 1513, 1516; Standon Co., Inc. v. Superior Court, (1990) 225 Cal.App.3d 898, 902-903.)

Also, discovery should not be denied if the information sought has any relevance to the subject matter. Thus, while relevancy is a possible ground for an objection, it is difficult to adequately justify it. (See generally Coy v. Superior Court of Contra Costa County (1962) 58 Cal.2d 210, 217.) The Court agrees with Plaintiffs that the requested documents are relevant to the instant action. Courts routinely compel production of the same information and documents requested here where the defect at issue is a common one alleged by consumers.

In Doppes, for instance, the plaintiff sued car manufacturer Bentley for violations of the SBA after Bentley failed to repair, repurchase, or replace a 2001 Bentley Arnage that had an obnoxious odor in the interior resulting from the rust inhibitor used on the subject car frames. (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 971.) The plaintiff there sought production of all documents relating to (1) customer complaints concerning the rust inhibitor used on the 2002 Bentley Arnage; (2) all notices to Bentley dealers for the period 2001 to the present concerning

the rust inhibitor used on the Bentley Arnage; (3) all warranty repairs during the period of January 2002 to the present of the Bentley Arnage related to the rust inhibitor used on the vehicle; (4) all customer complaints of a wax oil smell caused by the rust inhibitor on the 2002 Bentley Arnage; and (5) vehicle tests conducted on the 2002 model year Arnage to confirm whether there was a wax oil smell arising from the vehicle's rust inhibitor. (Id. at pp. 973-74). When the defendant failed to produce these documents, the Doppes plaintiff moved to compel production of these documents, and the trial court ordered Bentley to produce them. (Ibid.) The trial court adopted the discovery referee's finding that Bentley had "failed to timely produce relevant and properly demanded, but potentially damaging, documents," and that it had failed to adequately explain its failure to provide full and complete evidence. (Ibid. (internal quotations omitted).)

Here, similarly, Plaintiff requests production of the same types of documents that were the subject of the Doppes court's decision resulting in terminating sanctions being levied against that defendant, specifically documents concerning customer complaints substantially similar to complaints made by Plaintiffs with respect to the subject vehicle. While Defendant here may argue that such discovery is in excess of a "single Lemon Law matter" involving a "single vehicle," the prevailing authority holds otherwise. (See *Donlen v. Ford Motor Company* (2013) 217 Cal.App.4th 138, 154 ["Ford asserts the trial court abused its discretion when it denied Ford's in limine motions to exclude evidence of other vehicles and of the nonwarranty repair. We have already concluded the court did not abuse its discretion...."].)

Therefore, further responses to RFPDs Nos. 2–27, 29, 33–39, 50, 55, and 58–60 are

required.

Plaintiff's motion is granted.

The Court notes that Plaintiff is not seeking sanctions pursuant to Code of Civil Procedure section 2023.030(a)

IV.

CONCLUSION

Based
on the foregoing, Plaintiff's motion to compel further
responses to Requests for

Production, set one is GRANTED.

Defendant is
to serve verified, further code compliant responses Plaintiff's RFPDs Nos. 2–27, 29, 33–39, 50,
55, and 58–60 without objection – except attorney client
privilege/work product and privacy – within thirty (30) days of notice of this
order.

The Court notes that it gives no weight to Defendant's
argument that this case is subject to arbitration. This matter was set for trial at the CMC on
May 14, 2025, and no motion to compel arbitration has as yet been filed.

Dated this 2nd day of September 2026

Hon. Gary D.
Roberts

Judge of the
Superior Court